



Duffield Parish Council

Invitation to Tender (ITT)

For Provision of Ground Maintenance Services; 2022-25



Image; Duffield Parish Council

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INVITATION TO TENDER (ITT)

1. Summary Instructions and ITT Timetable

Item	Contract Details
Invitation to Tender (ITT)	Duffield Parish Council is carrying out this procurement process for the provision of a Ground Maintenance service contract
Contract Duration:	25 th April 2022 – 24 th April 2025
Procuring Officer:	Any queries must be addressed to the Parish Clerk.
Date/time for Tender return:	28th March 2022 - by 12.00 noon
Notification of result of Tender evaluation	7th April 2022
Contract Commencement	25 th April 2022

2. ITT Preamble

2.1 Introduction

Duffield Parish Council is seeking to award a three-year grounds maintenance contract. The Invitation to Tender is being procured under the Parish Council's open tender process; in line with the Public Contracts Regulations 2015.

This document provides applicants wishing to tender for the grounds maintenance contract with the requirements, standards and conditions under which the procurement will be operated.

2.2 Overview of Duffield Parish Council

Operating as a third tier of local authority, the Parish Council provides local services (in conjunction with principal authorities Derbyshire County Council and Amber Valley Borough Council). The Parish Council is a vital part of the village; representing local interests, making decisions on behalf of parishioners, delivering services to meet local needs and ensuring the well-being of the community. On the Council website its mission statement affirms '*We strive to make Duffield a better place to live, work and visit*'.

2.3 Grounds Maintenance; Background & Objectives

The purpose of the tendered contract is to deliver a high-quality grounds maintenance service for Duffield Parish Council's public open spaces – including amenity, recreational, sporting and wildlife areas.

The Parish Council puts great value in the day-to-day management of these open spaces as a resource that all residents can enjoy. Green Spaces are a vital part of the community infrastructure; contributing in a variety of ways to the health and well-being of all that use them or enjoy their visual amenity.

The Tender Specification provides the necessary details and standards to achieve the Parish Council's required maintenance standards, while other sections (such as the Terms and Conditions), outline essential work pre-requisites; such as health & safety and necessary qualifications.

Value for money is essential for any local authority that is spending public money; and it will be a key attribute in determining the successful applicant for this tender.

Another important element of the tender will be provision of social value, which is based on supporting ethical criteria wherever possible. For instance, the Parish Council will favour the opportunity to use companies or contractors that can put money back into the area by providing opportunities for local employment. It is also imperative the successful applicant shows a commitment to satisfactory employment conditions and pays its staff a real living wage.

Establishing strong environmental standards and benefits are other key elements of supporting social values. The Parish Council declared a climate emergency in February 2020; pledging to proactively reduce the council's CO2 emissions, whilst encouraging and enabling the community to do so too. Consequently, a strong focus on reducing the carbon footprint of the Parish Council's own grounds maintenance operations will be essential.

Likewise, maintenance that supports the council's commitment to addressing the ecological emergency is an increasing focus of its grounds management requirements. Where possible, any suitable opportunity to enhance biodiversity and wildlife habitats should be identified and adopted.

3. General Tender Information

3.1 Supervising Officer

The main supervising officer will be the Parish Clerk. Responsibility for day-to-day supervision, however, may be part-delegated during the contract to the Parish Council's Village Warden.

A brief update report shall be submitted to the Parish Clerk and Village Warden on the last day of each month by email. The update shall set out work undertaken, work not undertaken and the reason why, and any issues arising.

3.2 Budget

As a guide, the estimated cost to the Parish Council for this contract will be approximately £15,000.00 per year. This available budget is exclusive of all costs and VAT.

3.3 Payment

Payment will be made monthly to the contractor on satisfactory completion of works and following receipt and verification of an invoice by the Council. Invoices should be produced monthly by the last day of the month and clearly state the agreed, scheduled payment or the cost of each individual job carried out over that period. Payment will be made by BACs.

In accordance with the Public Procurement Contract Regulations 2015, the Council will pay all valid and undisputed invoices no later than 30 days from the date on which the invoice was received.

3.4 Duration of Contract Term

The Parish Council Grounds Maintenance contract will commence on 25th April 2022 and proceed for a three-year period Until March/April 2025, subject to satisfactory performance.

3.5 Extension Periods

There is a variable-option to extend for a further two years (3years, +1year and +1year) at the discretion of the Council and by mutual agreement of both parties.

These two extension period options might extend for 2 x 12 months from; -

- 25th April 2025 – 24th April 2026
- 25th April 2026 – 24th April 2027

The Extension Notice Period would be expressed working back from the then current End Date.

4. Site Details

4.1 Site Information

Maintenance is required to a number of key Parish Council-owned open-spaces in Duffield. These include Eyes Meadow, Gray Recreation Ground and Cemetery Pasture. Other sites where work is required include the Millennium Meadow, the Cemetery and some smaller amenity plots such as the car parks and small grassed area on Donald Hawley Way. All sites are public open spaces and likely to have the members of the public on site.

Additional maintenance of specified hedgerows and some of the 2,732m of public footpaths in the village will also be necessary.

4.1.1 Eyes Meadow

The Meadow is a sports and recreational site located to the east of the village. It includes seven football pitches, changing rooms, two cricket pitches and Club House, storage containers and a tarmacked car park. The site is home to Duffield Dynamos Football Club and Duffield Cricket Club. Two other local clubs, currently Holbrook St Michaels and Inter-Belper also play on Pitch 6. (The cricket club house and cricket pitches are the subject of a lease agreement and maintained by the Club, and are not included in the tender contract). The River Derwent runs alongside the site and is home to the Derby Angling Federation.

In addition to sport, Eyes Meadow is also used as the location for the village carnival and annual fireworks event. It is popular with walkers and is used throughout the year for other social activities and events such as the Eyes Have It Music Festival, outdoor theatre and cinema, and is hired by individuals for celebratory events.

- Vehicular Access; This is available from Donald Hawley Way - via Church Drive off Makeney Road. There is no post code for the site, but the nearest one is for St Alkmund's Church (DE56 4BA).
- Barriers are in place, but keypad codes are available for permitted access. There are two gates to prevent unauthorised access past the Cricket Club towards the Changing Rooms.
- Facilities; There is a car park and changing rooms with toilets (not open to the general public). The changing rooms are maintained by the Parish Council grounds maintenance team.
- Health and Safety Considerations;
 - There is an Orange telephone mast on site;
 - Pedestrian access and vehicular access for maintenance to Millennium Meadow is gained from Eyes Meadow opposite the car park;
 - A defibrillator has been installed on the side of the Changing Rooms.

4.1.2 Millennium Meadow

The local nature reserve sits adjacent and immediately south to Eyes Meadow. It was formerly part of Eyes Meadow site and was created in 1999. It is largely managed by the Duffield Millennium Meadow Conservation Trust, which is a registered charity. The Meadow measures 5.7 hectares and

is bounded on three sides by the Derwent and Ecclesbourne Rivers. The site contains approximately 3km of grass paths across the grassland.

- Vehicular Access; This is available via Donald Hawley Way (as above), with specific on-site access into the Meadow opposite the Eyes Meadow Car Park.
- Health and Safety Considerations; There are ponds on site.

4.1.3 Grays Recreation Ground

This amenity site is located on Snake Lane at the heart of Duffield. It is a popular site for younger residents and home to the village children's playground. There are also mini football posts and a large green area to encourage free play for children of all ages.

- Vehicular Access; This is available from Snake Lane (post code; DE56 4FF). Access for maintenance vehicles is available off Snake Lane via a lockable bollard. Pedestrian access is gained from 3 entry points along Snake Lane plus an additional access via Ecclesbourne Meadow from Holloway Road. There is no parking on this site.
- Health and Safety Considerations; The site can become damp over the winter and inhibit vehicular access for cutting of the hedgerows.

4.1.4 Cemetery Pasture

This 3.5 acre field sits adjacent to Duffield Cemetery on its southwest boundary. It has historically been rented out to a local farmer for sheep grazing.

- Vehicular Access; This is available via Cemetery Lodge (post code; DE56 4DQ)
- Health and Safety Considerations; A public footpath crosses the site and a soakaway is fenced off within the pasture. There are proposals to reintroduce sheep grazing on the pasture, but these will be contained within stock-proof fencing with a wayleave for access to maintain hedgerows and ditches.

4.1.5 The Cemetery

Duffield Cemetery has twelve burial blocks and a large formal Garden of Remembrance. Maintenance is currently carried out in-house by the Parish Council Village Warden and Grounds-person. However, during the period of the contract, it may be necessary for the contractor to take over this role on either a temporary or permanent basis. It is therefore necessary for the Cemetery Section to be priced on a provisional basis and these rates will be taken into account in awarding the Contract.

- Vehicular Access; This is available via the main gate at Cemetery Lodge (post code; DE56 4DQ). A secondary access is available from Hazelwood Road.
- Facilities; There is an outside toilet available for cemetery users and allotment holders. There is also an outside water tap available.
- Health and Safety Considerations; Work strictly needs to avoid times when burials are taking place.

4.2. Site Plans

Plans and maps of all areas (see Appendix Section C: Site Plans and Maps) have been included for your reference.

4.3 Site Visits

The applicant is strongly advised to make necessary site-visits prior to completing an offer to ensure knowledge of the locations involved. This includes assessing relevant conditions or features and gaining familiarity with access arrangements and detailed measurements. Such due diligence is reasonably expected in submitting a tender of this scale.

5. Evaluation of Tender Offers

5.1 Evaluation of Tenders

All tender bids will be treated equally and assessed with transparency throughout the evaluation process. The information disclosed by applicants will be used purely for the purposes of evaluation. If a bid succeeds in passing the first stage of the evaluation, it will be evaluated in accordance with the evaluation methodology.

All submissions will be reviewed for completeness and compliance with the ITT and stated requirements. This is to ensure they have been completed correctly and all necessary information has been provided. Incomplete and non-compliant tenders will be rejected.

5.2 Evaluation Criterion

As indicated in section 2.3 on *Grounds Maintenance Background & Objectives*, the main aim of the maintenance contract will be to deliver the highest quality grounds maintenance service. Applicants should demonstrate their understanding of the objectives and requirements (as set out in the ITT) and their response must display compliance with the requirements.

The ITT provides the opportunity for Duffield Parish Council to select the best applicant based on specific tender criteria. This enables the Parish Council to identify the bid that best meets its needs, while offering an economically favourable tender.

5.3 Selection Criterion

The evaluation criterion is assessed according to the Parish Council's weightings and calculated to give an overall comparative score out of 100. The highest scoring tender bid will be selected.

5.4 Evaluation Criteria and Weightings

Submitted Tender offers will be assessed using the following criteria and weightings: -

Evaluation Criteria and Weightings	
Criteria	Weighting
Value for money	30%
Experience	20%

Quality	20%
Environmental Policies	20%
Locality	10%

5.4.1 Value for Money

This is an essential element that comprises the itemised and aggregate price of the tender offer. The Cost Submission Form provides the opportunity to detail a schedule of competitive rates/prices for the works. The form also allows applicants to outline what measurable or demonstrable **Added Value** can be offered in the tender to enhance delivery of grounds maintenance; without costing the Parish Council additional expense.

5.4.2 Experience

Recent relevant experience will be viewed favourably, particularly in applicable technical areas associated with the variety and scale of this programme of work. This might include grounds maintenance or horticultural expertise.

The ITT places significant emphasis on performance-based specifications, where skilled operatives are employed by the applicant; because they will understand the technical requirements of grounds maintenance.

Where possible, a list of relevant projects undertaken should be provided; with a description and relevance to the tendered project, role of the applicant, project cost and duration of the scheme.

Of particular importance is the applicant's performance in completing past contracts to the quality standards required – including the ability to undertake contracts on time, within budget and to the satisfaction of clients. This information should include the name of two contracts or projects, their completion dates and reference contact details.

The applicant should also provide evidence of the company policies and work procedures it has in place (particularly regarding employment conditions and environmental standards) to meet mandatory requirements: and what management skills and systems are in situ.

5.4.3 Quality

This element is relevant to all the required Parish Council criteria. There are, however, a number of specific qualitative attributes the Council will be looking for.

First and foremost, the Parish Council seeks a high-quality performance throughout the service of the contract and verification that this necessary standard will be delivered. The applicant is required to demonstrate excellent levels of care, flexibility and responsiveness. This quality also needs to be reflected in dealings or communication with the Parish Council and public.

A demonstration of the proposed methodology and approach to the work will be advantageous. The Parish Council will also favour an applicant that can adopt innovative solutions and emerging

technologies in their work, while being able to display a positive response to any potential problems.

The applicant will also be required to demonstrate their capability and resources to successfully undertake the contract. This includes aspects such as plant machinery, equipment and personnel (including staff resilience and turnover).

The competence of the key professional and technical personnel (which the applicant proposes to employ on the contract) needs to be assessed. To enable this, details of the technical skills, expertise and experience of the contractor's team should be provided. Where appropriate evidence should be provided of training or continuous learning to ensure personnel have sufficient learning or qualifications.

5.4.4 Environmental and Social Policies

As outlined in the ITT Background & Objectives, the Parish Council is committed to setting strong environmental standards and supporting social values. Consequently, the tender offer should outline the applicant's own ethical and environmental policies or ethos to help support this.

This will include the applicant's commitment or efforts to adapt to climate change and achieve carbon reduction. Suggestions for reducing the carbon footprint of the ITT grounds maintenance operations will be equally advantageous including, for instance, the potential to reduce energy, fuel and pesticide use in the provision of the contract, what measures could be taken to reduce, reuse and recycle waste, and the sourcing of ethically-responsible materials.

Just as importantly, Duffield Parish Council supports efforts to address the biodiversity emergency. The applicant should therefore highlight their ecological credentials and emphasise any opportunities identified to enhance biodiversity and wildlife habitats within the maintenance schedule.

The applicant should also consider the main environmental impacts associated with delivering the contract and how these can be reduced or managed.

5.4.5 Locality

Geographic proximity to Duffield is an important factor in so far as locality impacts the Parish Council's Objectives set out in the Village Action Plan, in particular the Environment Theme. This includes minimising environmental impact, promoting local business, and protecting the natural environment; close proximity to Duffield will limit vehicular travel and significantly help reduce the carbon footprint of the contracted works.

Maintenance of the Parish Council's open spaces may at times require a nuanced and receptive approach. A local presence and ability to respond quickly is therefore also considered an important attribute of locality.

6. Invitation to Tender Process

Duffield Parish Council is issuing this ITT and inviting bids from Applicants in response to the published contract notice.

The procedure is being procured under the Council's open tender process, in line with the Public Contracts Regulations 2015. This procurement will follow a clear and transparent process, to ensure that all applicants are treated equally.

6.1 Indicative Timetable for Tenders and Schedule

Set out below is the indicative timetable for tendering with the key dates for this proposed procurement as follows: -

Indicative Timetable for Tenders	
Procurement Stage	Deadline
Publication of ITT advertisement (Contract Notice) in Contract Finder and local newspaper	1 st March 2022
Clarification or site meetings if required	14 th March 2022
Latest date for clarification questions to be submitted	21 st March 2022
Clarification responses to be issued by	23 rd March 2022
Deadline for receipt of completed ITT documents return by the Parish Council	28 th March 2022
Evaluation of the ITT responses commences	30 th March 2022
Ratification of Evaluation Assessment by the Finance and Management Committee and Award of Contract	6 th April 2022
Notification of Contract award (Contract Award Notice) to applicants	31 st March 2022
Award of Contract	31 st March 2022
Date of commencement of contract	25 th April 2022
Date of completion of contract	31 st March 2025

6.2 Instructions for Tendering

Applicants should read these ITT instructions, Specification and Terms & Conditions carefully before completing the Tender documentation. Failure to comply with completion and submission requirements may result in the rejection of the Tender.

6.3 Enquiries

All initial enquiries should be made to the Parish Clerk by telephone on 07719 103015 or by email at clerk@duffieldparishcouncil.gov.uk.

6.4 Clarification Requests

Prospective Contractors should ensure that they are completely familiar with the nature and extent of the obligations required if the tender is awarded.

If necessary, Clarification Meetings and/or site visits may be arranged with the Parish Council. These should be arranged via the Parish Clerk no later than stated in the indicative timetable for tenders.

All subsequent clarification requests should be submitted by applicants to the Parish Clerk by the Clarification Deadline no later than one week before the closing date (as set out in the Indicative Timetable for Tenders table). These requests should clearly reference the appropriate paragraph in the ITT documentation and be aggregated rather than sent individually. The council is under no obligation to respond to clarification requests received after the Clarification Deadline.

7. Instructions for Completion

7.1 Cost Submission Form and Pricing

The Cost Submission Form (see Appendix Section D) provides the opportunity for the applicant to provide a breakdown of itemised costs to be included with the tender offer. Tenders are to be priced on an annual basis.

All costs submitted are to be presented in Pounds Sterling and consistently excluding VAT or expenses/other costs where applicable. The tender prices offered should also be firm and fixed (for any identifiable items that make up the itemised costs) for the duration of the Contract.

The breakdown of costs is vital in evaluating and comparing specific itemised costs between each tender. It will also become part of any successful contract to assess costs and any periodic payments to be made.

Applicants may modify their tender response prior to the tender submission deadline (as per the indicative timetable for tenders) by giving written notice to the Parish Council. Any modification should be clear and submitted as a complete new tender response in accordance with these ITT conditions.

Applicants are advised that the Council is not bound to accept the lowest tender submitted nor to reimburse any expense incurred during the process.

7.2 Pricing for Additional Services

Some items of unscheduled and variable work are identified in the specification but will not be included in the tendered price. Where this occurs, the applicant is required to provide additional pricing rates per hour or per item in the Cost Submission Form. This will not be included in the tendered price. No guarantee can be given to the particular level of additional and unscheduled work which will be awarded; rather it should simplify and speed up the process by avoiding the need for seeking further competitive quotes.

7.3 Variations and Additions

There will be occasions when the Parish Council might request additional work that is not identified in the specification or specified in the schedule of works. This will be carried out through a simple *Contract Amendment*. Once the applicant has agreed the scope and terms of the additional work, a confirmation will be added to the contract to reflect the extra cost & time.

Alternatively, if the contractor needs to carry out unforeseen additional work, the Parish Council can agree to this through a *Variation to Contract*. The Council will confirm acceptance by raising a *Variation Order* document containing the original contract price, variation price and new price.

7.4 Pre-Qualification Questionnaire (PQQ)

The PQQ (see Appendix Section D) is used to ascertain the suitability of a contractor Suppliers in relation to the requirements of the Parish Council and the ITT. It requires commercial and legal information regarding the applicant's company and some specific questions about the contract being tendered. The form includes standard questions on company details, insurance cover, financial information, relevant experience, particulars about technical or professional ability and Information about capability or capacity.

7.5 Pre-Evaluation Questionnaire (PEQ)

This PEQ form (see Appendix Section C) is the opportunity for the applicant to demonstrate that they comply with any mandatory or discretionary (such as included in the ITT evaluation criteria) requirements for the contract. Key elements include provision of social value, added value and value for money to the Parish Council. It is also where the applicant can outline their specific qualities and any other relevant information to support their tender.

7.6 Form of Tender

The Form of Tender (see Appendix Section E) is a covering document prepared by Duffield Parish Council and signed by the applicant to indicate they understand the tender being made and accept the various terms and conditions and other requirements of participating in the exercise.

7.7 Checklist of Documents

Tenderers are required to submit the completed checklist to ensure that all ITT documents required for completion have been returned with the submitted tender.

7.8 Submission of Tenders and supporting documentation

All complete tenders must be submitted in writing (by 12.00 noon on the 28th March 2022) to the Parish Council office and clearly marked '*Duffield Grounds Maintenance Contract Tender*'.

These tenders should be submitted in a sealed envelope (by mail or in person) to the Parish Council and addressed to the Parish Clerk (at Duffield Parish Council, Cemetery Lodge, Duffield Cemetery, 43 Hazelwood Road, Duffield, Belper, Derbyshire, DE56 4DQ).

Tenders should contain all the items listed below. Each form should be a scanned version of a signed copy. No additional information should be submitted or will be considered after the submission deadline.

The following shall be provided (for completed return): -

- Section D: Selection Questionnaire
- Section E: Evaluation Questionnaire Form
- Section F: Cost Submission Form
- Section G: Form of Tender
- Section H: Checklist of Documents

7.9 Further Information

The Parish Council may at any time request further information from applicants to verify or clarify any aspects of their tender response or other information they may have provided.

Should the applicant not provide supplementary information or clarifications by the notified deadline, the tender offer may be rejected in full and disqualified from this procurement process.

7.10 Acceptance of Offers

Submitted documents shall constitute an irrevocable offer to provide the grounds maintenance services. The Council will not necessarily accept the lowest priced tender bid; the decision to award the contract will be based on the specified evaluation criteria and weightings.

7.11 Award of Contract

Any acceptance by the Parish Council shall be communicated in writing to the applicant. Upon such acceptance by the applicant, the Contract shall become binding on all parties.

The Council shall conclude a formal Contract with the successful applicant, which shall embody the Applicant's offer. No tender can be considered successful until a formal contract has been signed by an authorised Council officer and co-signed by the applicant's authorised officer.

This process is in accordance with the criteria listed at Regulation 67 of the Public Contracts Regulations 2015.

8. Definitions

Term	Meaning
Applicant	The company or contractor responding to the ITT through the procurement process. This term is used intermittently with contractor.
Arisings	Means grass cuttings, weeds, shrub/rose off-cuts, unwanted soil etc, leaves, rubbish, dirt and debris at any location or in its immediate environment.
Authorised Officer	Means the principle contact at Duffield Council or such representatives notified by the Parish Council. Also the principle contact representing the applicant or contractor.
Award	The process by which the Parish Council shall determine to whom the Contract will be awarded.
Bid	The Applicant's offer, which shall be submitted as the completed procurement documents.
Contract	The formal and legally binding agreement to be entered into by Duffield Parish Council and the successful applicant following award under the procurement exercise.
Contract Notice	The publication by the Parish Council and its intention to procure a public supplies, services, or works Contract.
Contractor	The Applicant or company awarded the contract; - culminating from an offer to provide services accepted by the Parish Council. This term is used intermittently with applicant.
Evaluation	The process through which the Applicant's Bid is reviewed in accordance with the Evaluation Criteria, following which a decision to award a Contract is made.
Evaluation Criteria	The means by which the Parish Council evaluates an applicant's bid; to include all of the issues that must be considered so as to be able to judge the suitability of an applicant's bid.
Herbicides	This is chemicals, compounds and/or any proprietary products produced for the control and/or eradication of weeds, fungi, algae or moss and including all fungicides, fumigants, algicides and moss killer.
Invitation to Tender or ITT	This is the written request (and all related documents) published by the Parish Council and made available for an interested applicant to submit a written bid to facilitate the Parish Council's requirements.
Litter	Including debris, detritus animal carcasses, cigarette butts, dog faeces and animal fouling, rubbish, salt and grit arising from winter maintenance, oil, vomit, gum, hypodermic syringes, needles and drug related material defined as clinical waste (in accordance with the Control of Waste Regulations 1992); leaf and fruit fall and blown vegetation, bud burst, blossom, twigs and branches, deposits arising from fly tipping and other material howsoever caused or occurring.
Marking-out	The white lines marked on the ground which delineate the boundaries of the football pitch, together with the playing-lines.
Obstacles	Includes seats, streetlights, signs, manhole covers, memorials, trees, shrubs and any other obstruction within grassed areas. Obstacles also include edges of paths, wall and fence bases and other boundaries to grassed areas.
On Additional Basis	Additional and variable services identified in the specification, but not included in the tendered price.
Open Procedure	This is the procurement process determined by the Public Contracts Regulations 2015
Parish Council or	Duffield Parish Council

Council	
Pesticides	Including chemicals, compounds and/or any proprietary products for the control and/or eradication of pests and shall include insecticides, acaricides, lumbricides and molluscicides.
Procurement	Term used for the acquisition of supplies, services or works from an external source
Public Contracts Regulations 2015	This is the UK legislation concerning the procedures for the award of public works contracts, public supply contracts and public service contracts
Public Liability Insurance	The insurance covering members of the public coming onto the Parish Council's premises. It covers any awards of damages given because of an injury or damage to their property caused by the contractor. It also covers any related legal fees, costs and expenses as well as costs of hospital treatment that the NHS may claim from the contractor.
Selection	The process by which applicants will be selected within the procurement process, in accordance with Regulation 58 of the Public Contracts Regulations 2015.
Services	This is the provision of a schedule of maintenance works as identified in the specification.
Specification	A detailed description of the Parish Council's requirements for this contract of works.
Sub-Contractor	A subcontracting individual or company, carrying out work on behalf of the primary contractor, as part of the larger contracted project.
Tender Response	This is the applicant's formal response to the invitation to tender.
Tenderers	Means the applicants responding to this Invitation To Tender